

Chapter 1.1

General provisions

1.1.0 Introductory note

It should be noted that other international and national modal regulations exist and that those regulations may recognize all or part of the provisions of this Code. In addition, port authorities and other bodies and organizations should recognize the Code and may use it as a basis for their storage and handling bye-laws within loading and discharge areas.

1.1.1 Application and implementation of the Code

1.1.1.1 The provisions contained in this Code are applicable to all ships to which the *International Convention for the Safety of Life at Sea, 1974* (SOLAS), as amended, applies and which are carrying dangerous goods as defined in regulation 1 of part A of chapter VII of that Convention.

1.1.1.2 The provisions of regulation II-2/19 of that Convention apply to passenger ships and to cargo ships constructed on or after 1 July 2002.

For:

- .1 a passenger ship constructed on or after 1 September 1984 but before 1 July 2002; or
- .2 a cargo ship of 500 gross tons or over constructed on or after 1 September 1984 but before 1 July 2002; or
- .3 a cargo ship of less than 500 gross tons constructed on or after 1 February 1992 but before 1 July 2002, the requirements of regulation II-2/54 of SOLAS, as amended by resolutions MSC.1(XLV), MSC.6(48), MSC.13(57), MSC.22(59), MSC.24(60), MSC.27(61), MSC.31(63) and MSC.57(67), apply (see II-2/1.2).

For cargo ships of less than 500 gross tons constructed on or after 1 September 1984 and before 1 February 1992, it is recommended that Contracting Governments extend such application to these cargo ships as far as possible.

1.1.1.3 All ships, irrespective of type and size, carrying substances, materials or articles identified in this Code as marine pollutants are subject to the provisions of this Code.

1.1.1.4 In certain parts of this Code, a particular action is prescribed, but the responsibility for carrying out the action is not specifically assigned to any particular person. Such responsibility may vary according to the laws and customs of different countries and the international conventions into which these countries have entered. For the purpose of this Code, it is not necessary to make this assignment, but only to identify the action itself. It remains the prerogative of each Government to assign this responsibility.

1.1.1.5 Although this Code is legally treated as a mandatory instrument under chapter VII of SOLAS, as amended, the following provisions of the Code remain recommendatory:

- .1 paragraph 1.1.1.8 (Notification of infringements);
- .2 paragraphs 1.3.1.4 to 1.3.1.7 (Training);
- .3 chapter 1.4 (Security provisions) except 1.4.1.1, which is mandatory;
- .4 section 2.1.0 of chapter 2.1 (Class 1 – Explosives, Introductory notes);
- .5 section 2.3.3 of chapter 2.3 (Determination of flashpoint);
- .6 columns 15 and 17 of the Dangerous Goods List in chapter 3.2;
- .7 the segregation flow chart and example in the annex to chapter 7.2;
- .8 section 5.4.5 of chapter 5.4 (Multimodal Dangerous Goods Form), insofar as the layout of the form is concerned;